

CHAPTER 173: WATER SYSTEM ORDINANCE

Section 173.01 Water System

AN ORDINANCE REGULATING THE USE OF PUBLIC AND PRIVATE WATER AND SEWER SYSTEMS AND PROVIDING PENALTIES FOR VIOLATIONS OF SUCH REGULATIONS IN THE TOWN OF MOUNT CRAWFORD, VIRGINIA

§173.01 Water System

(A) OCCUPIED BUILDINGS TO HAVE WATER SUPPLY

It shall be unlawful to the owner of any building used for human habitation to permit any person to occupy such building until it has been provided with a sanitary supply of water. If any landlord fails to supply any such building with sanitary water, his tenants shall do so and may deduct the cost thereof including costs of all excavation and plumbing required by the Chapter from any sum due the landlord.

(B) PRIVATE SYSTEMS PROHIBITED WHERE TOWN SERVICE IS AVAILABLE

It shall be unlawful for the owner of any building to furnish water to persons living in or using the building except to the extent that an adequate sanitary water supply exists which exists on the effective date of this Chapter. It shall be unlawful for any person to furnish water to the property of another person within the corporate limes of the Town unless the Town water system is not within one hundred (100) fee of the relevant property.

(C) RESIDENTIAL OR BUSINESS UNITS TO HAVE SEPARATE WATER AND SEWER CONNECTIONS AND METERS

Each residential or business until shall have a separate water connections and meter unless otherwise authorized by the Town Council. Apartment buildings may have a single meter for the whole building, provided the apartment building owner is treated as the consumer. Water meters shall be furnished, located, and maintained by the Town and shall be placed as near the property line a practicable.

(D) CONNECTIONS, GENERALLY

All connections to the Town water system shall require prior approval of the Town Council upon application by the consumer in a form determined by the Town Council. Full connection fees shall be tendered upon application and will be returned if connection is not approved. For water

service outside the Town, the property owner shall pay prior to construction the estimated cost of extending the line to the property. Any amounts unused shall be returned to the property owner and any further cost shall be promptly paid to the Town by the property owner.

(E) CROSS CONNECTIONS TO THE TOWN'S WATER SUPPLY

No person shall install or maintain a cross connection, as defined in the Virginia Waterworks Regulations, from the consumer's water system to the Town water system, whether such connection be made on or off the property of such person; provided, however, the Town Council may allow such cross connection to be made and a backflow prevention device installed where, in the Town Council's judgment, no contamination of the Town water supply will result therefrom. In no case, however, shall any such cross connection be made, except under the authority of a written permit from the Town Council, and in accordance with plans and specifications approved by the Town Council. All such cross connections, where made, may be inspected and approved from time to time by agents of the Town. The Town Council shall have the power to revoke the permit allowing such cross connections at any time such cross connection does not pass inspection, or it is to the best interest of the public that such cross connections be discontinued.

(F) INSPECTION OF PREMISES AT REASONABLE HOURS

Every person occupying a lot, house, or other building into which water is conveyed from the Town water supply shall permit the Town meter reader, to enter such lot, house, or other building, at reasonable hours, to inspect the working of the water system therein or to see if the ordinances of the Town relative to the water system are, or have been violated.

(G) INSTALLATION AND SPECIFICATIONS OF NEW WATER MAINS

In the case of subdivisions, the owner or developer shall install, at its expense, all water mains in the subdivision in accordance with specifications prescribed by the Town Council. Upon installation, such water mains shall become the property of, and shall be maintained by, the Town.

(H) INSTALLATION AND SPECIFICATIONS OF SERVICE LINES

The owner of each property connected to the Town water system must install, at their expense and maintain the line which runs from the water meter connection to the building on the property according to specifications set by the Town Council. No connection shall be made unless the line is in compliance with Town specifications.

(I) WASTING WATER, GENERALLY

No person shall open any pipe, fire plug, hydrant, cock, or other parts of the Town water system without permission of the Town Council, or its agents, except in case of emergency.

(J) TAMPERING WITH PIPES, COCKS, ETC.

It shall be unlawful for any person to remove, alter, or damage in any way, any pipe, fire plug, hydrant, cock, or other apparatus of the Town water system.

(K) EMERGENCY WATER RESTRICTIONS

The Mayor may, if in their opinion, there exists a shortage in the Town water supply and an emergency therefore exists with respect thereto, give reasonable notice of the existence of such emergency and prescribe the extent to which the use of water shall be curtailed. It shall be unlawful for any person to use water other than as permitted by the terms of the order of the Mayor after due publication of the notice. Such order of the Mayor shall be effective until the next regular or special meeting of the Town Council at which time the Town Council is authorized to act pursuant to this section.

(L) CONNECTION CHARGES; DEPOSITS

The fee for water connections is as follows:

New Service Connections

Connection Fees

To receive new Town water and/or sewer services, the property owner is responsible to pay the connection fees. Paying the connection fees establishes the property owner's rights to connect onto the town's water and/or sewer system. The town will not install the service line(s) to the property until these fees are paid. The connection fees are assessed based on the rates below. Please note that a typical residential connection requires a 3/4 meter

WATER AND SEWER CONNECTION FEES as of JULY 1, 2024

Water Connection Fees

Approved Rate

Meter Size ¾"	\$3,750
Meter Size 1"	\$9,360
Meter Size 1 ½"	\$18,750
Meter Size 2"	\$30,000

Meter Size 3"	\$60,000
Meter Size 4"	\$96,500
Meter Size 6"	\$187,000
Meter Size 8"	\$282,000
Meter Size 10"	\$468,000
Meter Size 12"	\$560,000

Sewer Connection Fees

Approved Rate

Meter Size ¾"	\$6,750
Meter Size 1"	\$16,840
Meter Size 1 ½"	\$33,750
Meter Size 2"	\$54,000
Meter Size 3"	\$108,000
Meter Size 4"	\$168,500
Meter Size 6"	\$337,000
Meter Size 8"	\$508,000
Meter Size 10"	\$842,000
Meter Size 12"	\$1,010,000

Additional Costs

The property owner is also responsible for installing the service lines from the property line, where the town stops the service lines, to the building that will receive the water and/or sewer service. Usually this is performed by an independent contractor, licensed by the state to perform such tasks. The property owner will hire the contractor of their choosing and make the arrangements to pay their fees.

The water and sewer connection fees will mirror Rockingham County's costs and change in unison.

(Approved by Town Council 2/15/2005)